

STATE OF NEW YORK

2631--A

2025-2026 Regular Sessions

IN SENATE

January 22, 2025

Introduced by Sen. JACKSON -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to requiring public elementary schools to start no earlier than eight a.m. and public secondary schools to start no earlier than eight thirty a.m.

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 305 of the education law is amended by adding a new
2 subdivision 63 to read as follows:

3 63. The commissioner shall promulgate rules and regulations requiring
4 all public elementary schools within the state to start no earlier than
5 eight a.m. and all public secondary schools within the state to start no
6 earlier than eight thirty a.m.

7 § 2. Section 3604 of the education law is amended by adding a new
8 subdivision 8-a to read as follows:

9 8-a. a. No public elementary school within the state shall be enti-
10 tled to any portion of such school moneys on such apportionment unless
11 the report of the trustees or board of education for the preceding
12 school year shall show that such public elementary school started no
13 earlier than eight a.m.

14 b. No public high school within the state shall be entitled to any
15 portion of such school moneys on such apportionment unless the report of
16 the trustees or board of education for the preceding school year shall
17 show that such public secondary schools started no earlier than eight
18 thirty a.m.

19 § 3. This act shall take effect immediately and shall apply to all
20 academic years beginning on and after such date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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